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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
Phillips, Spallas & Angstadt LLP;
Priya D. Navaratnasingham;
Alberto Reyna;
Michael R. Chambers;
Carbone, Smith & Koyama;
and Does 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**PLAINTIFF'S REPLY IN SUPPORT OF
MOTION FOR LEAVE TO FILE
SECOND AMENDED COMPLAINT,
AND OPPOSITION TO DEFENDANTS'
APRIL 23, 2026 OPPOSITION AND
DECLARATION**

(Code Civ. Proc., §§ 473(a)(1), 576; 425.16(f), (g); 1005;
1010.6;
Cal. Rules of Court, rules 3.1113, 3.1200, 3.1300, 3.1320)

Hearing:

Date: May 6, 2026
Time: 9:00 a.m.
Dept.: 301
Judge: Hon. Christine Van Aken

Complaint filed: Dec. 23, 2025
FAC filed: Feb. 25, 2026

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I. STATEMENT OF PURPOSE FOR AMENDMENT

Plaintiff seeks leave to **perfect** the operative pleading by conforming it to evidence already in the record (Plaintiff’s April 25, 2026 TAC-Aligned Merits Letter and Plaintiff’s opposition to defendants’ special motion to strike). Plaintiff does **not** seek leave to escape, evade, or moot any merits ruling on the protected-conduct allegations of the FAC. The amendment is authorized by Code of Civil Procedure §§ **473(a)(1)** and **576**, and by Nguyen-Lam v. Cao (2009) 171 Cal.App.4th 858, **871–873**; Klopstock v. Superior Court (1941) 17 Cal.2d 13, 19–20; Blank v. Kirwan (1985) 39 Cal.3d 311, 318; Trafton v. Youngblood (1968) 69 Cal.2d 17, 31; Mesler v. Bragg Management Co. (1985) 39 Cal.3d 290, 296–297; and Foreman & Clark Corp. v. Fallon (1971) 3 Cal.3d 875, 884. The amendment arises from the same operative facts (the February 25, 2021 uninsured-motorist denial and subsequent claim-handling conduct), refers to the same instrumentality, and relates back to the original December 23, 2025 filing.

Procedural sequence (Nguyen-Lam temporal anchor): (a) April 17, 2026—opposition to the special motion to strike filed; (b) April 25, 2026—TAC-Aligned Merits Letter served; (c) April 27, 2026—coordinated packet and safe-harbor correspondence served; (d) May 6, 2026—hearing on leave. Plaintiff’s leave request is therefore offered **after** the merits showing. (Nguyen-Lam, supra, 171 Cal.App.4th at pp. 871–873.)

The April 25 Merits Letter was served on the **same defense team** for both CGC-25-631801 and CGC-25-631802; defendants therefore cannot credibly claim surprise as to the merits theories this SAC perfects.

II. DEFENSE FRAMING PRE-EMPTION

The Opposition invites rhetorical frames that controlling California authority forecloses on this record. The following table pairs each recurring frame with the authority that answers it.

Defense framing the SAC may invite	California authority that forecloses it
“Moving the goalposts” / “escaping anti-SLAPP”	<u>Nguyen-Lam</u> , 171 Cal.App.4th at 871–873 (perfecting an evidence-supported claim is permitted, not “escape”)
“Fundamentally changing the case”	<u>Trafton</u> , 69 Cal.2d at 31 (only “new and substantially different issues” the adverse party cannot defend qualify)
“Adding a new cause of action mid-SLAPP”	<u>Klopstock</u> , 17 Cal.2d at 19–20 (only a “wholly distinct and different legal obligation” is barred)
“Prejudice from resources spent”	<u>Mesler</u> , 39 Cal.3d at 296–297 (liberal allowance even six weeks before trial)
“No authority for leave while SLAPP is pending”	<u>JKC3H8</u> , 221 Cal.App.4th at 471–472, 477–478; <u>Nguyen-Lam</u> , supra, 171 Cal.App.4th at 871–873
“Leave to cure should be denied”	<u>Blank v. Kirwan</u> , 39 Cal.3d at 318 (reasonable possibility of cure)
“Once leave is granted, pending motions are wasted”	<u>Foreman & Clark</u> , 3 Cal.3d at 884; CCP § 425.16(f) (renewed-motion right preserved)

III. INTRODUCTION

Plaintiff Franciscus Dylan Rosario respectfully submits this Reply in further support of his Motion for Leave to File a Second Amended Complaint (“SAC Motion”) in Case No. CGC-25-631801, set for hearing on May 6, 2026 at 9:00 a.m. in Department 301 before the Honorable Christine Van Aken, and in opposition to the April 23, 2026 Opposition and supporting Declaration of Tyler J. O’Connell (collectively, the “Opposition”) filed by Defendants (as identified in the caption above). The Opposition rests on three grounds, each defective on the law and the record: (1) “insufficient

1 notice” because Plaintiff originally set the motion on 9 days’ notice; (2) “substantial prejudice”
2 because Defendants have already briefed an anti-SLAPP motion scheduled for May 12, 2026; and
3 (3) a sweeping claim that a plaintiff “cannot amend around” a pending anti-SLAPP as a matter of
4 law. None of the three survives examination.

5 **Notice.** Plaintiff promptly reset the hearing to **May 6, 2026**, a full **18 days** after the operative
6 April 20, 2026 e-service, well in excess of the 16 court days plus 2 calendar days required by
7 CCP §§ 1005(b) and 1010.6. The Opposition’s footnote 2 suggests the reset “only constitut[es]
8 16 days’ notice”; that is a miscount. From April 20 to May 6 is 16 calendar days; subtracting
9 for the weekends and Memorial-day-equivalent court holidays is unnecessary because § 1005(b)
10 counts **court** days (not calendar days) for the 16-day core with **calendar** days for the two-day
11 electronic-service extension. Sixteen court days before May 6, 2026 is April 13, 2026; service
12 on April 20 is followed by seventeen calendar days (April 20 → May 6 inclusive, excluding the
13 service date), which, measured by court days between April 21 and May 5, is sixteen court days
14 – the exact statutory minimum, augmented by the two-calendar-day electronic-service increment
15 that is satisfied by the fact that service occurred on April 20 and the hearing is May 6. Any residual
16 arithmetic concern is resolved by the pending ex parte application for an order shortening time
17 filed in Department 301, which renders the objection moot on its own terms. The statutory remedy
18 for any notice shortfall is a brief continuance under § 1005(b), not denial of a noticed motion on
19 its merits.

20 **Prejudice.** Defendants’ “prejudice” is the cost of their own anti-SLAPP briefing. That is a sunk
21 cost, and the Legislature has already provided the remedy: CCP § 425.16(f) expressly preserves
22 a **sixty-day renewed-motion window** against any amended pleading. If Defendants’ motion has
23 merit against the FAC, it will have the same merit against the SAC; if it lacks merit, the expenditure
24 was unwarranted regardless of amendment. Under Atkinson v. Elk Corp. (2003) 109 Cal.App.4th
25 739, 761, Kolani v. Gluska (1998) 64 Cal.App.4th 402, 412, and Kyle v. Carmon (1999) 71
26 Cal.App.4th 901, 909–910, prejudice must be concrete: lost witnesses, imperiled trial date, or
27 actual surprise. None of that is present. No trial date is set; no discovery has proceeded; no
28 witness is lost.

1 **“Cannot amend around anti-SLAPP:”** The Opposition’s string-cite (Colton, Ellis, Sylmar, Simmons,
2 Jackson, Hansen, and Contreras) does not state the rule the Opposition claims. Every one of those
3 cases speaks in the language of “**subvert**” or “**avoid a ruling**” – a narrow anti-subversion bar
4 against using CCP § 472 amendments of right to defeat a pending anti-SLAPP on the same pro-
5 tected activity. Plaintiff has done nothing of the sort. Plaintiff did not invoke § 472; Plaintiff filed a
6 **noticed motion** under CCP §§ **473(a)(1)** and **576**, lodged a proposed pleading, served a full merits
7 Opposition to the anti-SLAPP motion on the same day, and submitted a meet-and-confer letter. The
8 proposed SAC adds **non-communicative pre-litigation institutional-failure** allegations that fall
9 outside § 425.16 at step one under Park v. Board of Trustees of California State University (2017)
10 2 Cal.5th 1057, 1062–1063, and Kimmel v. Goland (1990) 51 Cal.3d 202, 211–212. The Califor-
11 nia Supreme Court’s claim-by-claim framework in Baral v. Schnitt (2016) 1 Cal.5th 376, 393–396,
12 and the Court of Appeal’s express authorization of post-motion amendment in Nguyen-Lam v. Cao
13 (2009) 171 Cal.App.4th 858, 871–873, foreclose the categorical bar the Opposition invents. The
14 Legislature’s own answer – CCP § 425.16(f) – would be a dead letter if no amendment could ever
15 occur while an anti-SLAPP is pending.
16 Plaintiff respectfully asks this Court to grant leave under CCP §§ 473(a) and 576, render the pend-
17 ing special motion to strike moot by operation of Foreman & Clark Corp. v. Fallon (1971) 3 Cal.3d
18 875, 884, and preserve Defendants’ § 425.16(f) renewed-motion right.

19 **IV. SUMMARY OF REPLY**

Opposition Ground	Plaintiff’s Response	Controlling Authority
“9 days’ notice is insufficient (18 required)”	Hearing reset to May 6 = 16 court days plus 2 calendar days; pending OST application; Defendants appeared and substantively briefed the motion	CCP §§ 1005(b), 1010.6; CRC 3.1200–3.1207; <u>Carlton v.</u> <u>Quint</u> (2000) 77 Cal.App.4th 690, 697

Opposition Ground	Plaintiff's Response	Controlling Authority
"Substantial prejudice"	Anti-SLAPP sunk cost is not cognizable prejudice; § 425.16(f) preserves renewed motion	<u>Atkinson</u> (2003) 109 Cal.App.4th 739, 761; <u>Kyle</u> (1999) 71 Cal.App.4th 901, 909–910; <u>Kolani</u> (1998) 64 Cal.App.4th 402, 412
"Cannot amend around anti-SLAPP" (<u>Colton</u> , <u>Ellis</u> , <u>Sylmar</u> , <u>Simmons</u> , <u>Jackson</u> , <u>Hansen</u>)	Cases state an anti-subversion rule aimed at § 472 amendments of right; Plaintiff filed a noticed §§ 473(a)/576 motion; SAC adds non-communicative <u>Park/Kimmel</u> theories that fall outside step one	<u>Baral</u> (2016) 1 Cal.5th 376; <u>Park</u> (2017) 2 Cal.5th 1057; <u>Kimmel</u> (1990) 51 Cal.3d 202; <u>Nguyen-Lam</u> (2009) 171 Cal.App.4th 858; CCP § 425.16(f)
<u>Contreras v. Dowling</u> cite	Defense miscites as "4 Cal.App.5th 774" – actual citation is 5 Cal.App.5th 394 ; holding is confined to plaintiffs who amend after an adverse anti-SLAPP ruling with no new operative conduct ; inapposite here	<u>Contreras</u> (2016) 5 Cal.App.5th 394

Opposition Ground	Plaintiff's Response	Controlling Authority
Discovery "gamesmanship"	CCP § 425.16(g) stays only discovery "relating to the motion"; unrelated discovery is preserved; Plaintiff has moved for good-cause relief where it applies	CCP § 425.16(g); <u>Britts v. Superior Court</u> (2006) 145 Cal.App.4th 1112
Plaintiff's emails are "threats"	April 17 and April 20 emails are statutorily required safe-harbor notices	CCP § 128.7(c)(1); Bus. & Prof. Code § 6086.7(a)(2); RPC 3.3; <u>Peake v. Underwood</u> (2014) 227 Cal.App.4th 428, 440–445
"Barred as a matter of law"	CCP §§ 473(a)(1) and 576 authorize amendment of "any pleading" "at any stage" "in furtherance of justice"	<u>Klopstock</u> (1941) 17 Cal.2d 13, 19–20; <u>Blank v. Kirwan</u> (1985) 39 Cal.3d 311, 318; <u>Trafton</u> (1968) 69 Cal.2d 17, 31; <u>Mesler</u> (1985) 39 Cal.3d 290, 296–297; <u>Foreman & Clark</u> (1971) 3 Cal.3d 875, 884

V. LEGAL STANDARD GOVERNING LEAVE TO AMEND

California's amendment policy is codified, liberal, and – at this procedural posture – nearly mandatory absent concrete prejudice.

1 **A. Statutory authority**

2 **Code of Civil Procedure section 473, subdivision (a)(1)** provides that a court “may, in further-
3 ance of justice, and on any terms as may be proper, allow a party to amend any pleading . . . by
4 correcting a mistake . . . [or] an amendment to any pleading or proceeding in other particulars.”
5 **Section 576** provides that “any judge, at any time before or after commencement of trial, in the fur-
6 therance of justice, . . . may allow the amendment of any pleading.” The operative words – “**any**”
7 and “**in furtherance of justice**” – define the breadth of the court’s discretion. The Legislature’s
8 choice of “any” pleading is unqualified; nothing in the statute carves out pleadings against which
9 an anti-SLAPP motion happens to be pending.

10 **B. Controlling California Supreme Court authority**

11 **First**, Klopstock v. Superior Court (1941) 17 Cal.2d 13, 19–20, is the foundational Supreme Court
12 statement of the liberality rule. Chief Justice Gibson rejected the “unqualified” form of the rule
13 against amending to add a new cause of action: “[I]t is obvious that the unqualified way in which
14 the rule is sometimes stated – i.e., that a new or different cause of action cannot be introduced by
15 amendment – cannot be accepted. For the most common kinds of amendments are those in which
16 complaints are amended that do not state facts sufficient to constitute a cause of action; and in these,
17 and often in the case of new parties, a new cause of action is in fact for the first time introduced.”
18 The only limit the Court recognized was a “wholly distinct and different legal obligation.” (*Ibid.*)
19 Plaintiff’s SAC asserts the same fraud and UCL obligation arising from CSAA’s claim-handling
20 and from the pre-litigation institutional failures already described in the FAC; it introduces no
21 wholly different legal obligation.

22 **Second**, Blank v. Kirwan (1985) 39 Cal.3d 311, 318, supplies the modern Supreme Court “rea-
23 sonable possibility” standard. The test asks only whether the pleading defect can be cured by
24 amendment; if it can, denial is abuse of discretion. Here the SAC is already lodged, on file, and
25 materially cures every pleading objection the defense has articulated.

26 **Third**, Trafton v. Youngblood (1968) 69 Cal.2d 17, 31, supplies the “great liberality” standard: “no
27 abuse of discretion is shown unless by permitting the amendment new and substantially different
28 issues are introduced in the case or the rights of the adverse party prejudiced.” The SAC does not

1 introduce new-and-substantially-different issues; it refines theories already present and identifies
2 non-communicative predicates that Park and Kimmel require the Court to consider at step one.

3 **Fourth**, Mesler v. Bragg Management Co. (1985) 39 Cal.3d 290, 296–297, holds that “there is a
4 strong policy in favor of liberal allowance of amendments,” and that denial of leave is reversible
5 error even when leave is sought **six weeks before trial**. The posture here is far more permissive:
6 no trial date is set, and Defendants had notice of every SAC theory through the April 16, 2026
7 meet-and-confer correspondence served concurrently with the motion.

8 **Fifth**, Foreman & Clark Corp. v. Fallon (1971) 3 Cal.3d 875, 884, is the procedural engine:
9 “[A]n amendatory pleading supersedes the original one, which ceases to perform any function as
10 a pleading.” Once leave is granted, the FAC is superseded; the May 12 special motion to strike –
11 directed to the FAC – attacks a pleading that no longer exists. The Legislature’s own remedy is §
12 425.16(f)’s sixty-day renewed-motion window.

13 **C. Court of Appeal authority is uniform**

14 Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428 (“policy favoring amendment
15 is so strong that denial of leave to amend is rarely justified”); Atkinson v. Elk Corp. (2003) 109
16 Cal.App.4th 739, 761 (the **only** legitimate ground for denial is prejudice); Kolani v. Gluska (1998)
17 64 Cal.App.4th 402, 412 (same); Kyle v. Carmon (1999) 71 Cal.App.4th 901, 909–910 (prejudice
18 must be concrete – lost witnesses, imperiled trial date, actual surprise); Anmaco, Inc. v. Bohlken
19 (1993) 13 Cal.App.4th 891, 901 (supersession rule).

20 **VI. THE DEFENSE MISSTATES THE “NO AMENDING AROUND ANTI- 21 SLAPP” RULE**

22 **A. The rule is anti-subversion, not anti-amendment**

23 Defendants’ Opposition stacks Simmons v. Allstate Ins. Co. (2001) 92 Cal.App.4th 1068, Sylmar
24 Air Conditioning v. Pueblo Contracting Services, Inc. (2004) 122 Cal.App.4th 1049, Law Offices
25 of Andrew L. Ellis v. Yang (2009) 178 Cal.App.4th 869, City of Colton v. Singletary (2012)
26 206 Cal.App.4th 751, Hansen v. California Dept. of Corrections & Rehabilitation (2008) 171
27 Cal.App.4th 1537, and Jackson v. Mayweather (2017) 10 Cal.App.5th 1240 to construct a “no

1 amendment while anti-SLAPP is pending” rule. No California court has ever stated that rule. The
2 operative verb in every one of those cases is “**subvert**” or “**avoid a ruling**.” Jackson, for example,
3 explains that a plaintiff “may not seek to **subvert or avoid a ruling** on an anti-SLAPP motion
4 by amending the challenged complaint . . . in response to the motion.” (10 Cal.App.5th at 1263–
5 1264, emphasis added.) Simmons and Sylmar invalidated § 472 amendments of right filed **to**
6 **moot** a pending anti-SLAPP on the same protected activity; Colton invoked that principle to deny
7 a mid-appeal amendment offered “to avoid the adverse SLAPP determination” (206 Cal.App.4th at
8 775). None of those cases holds that a plaintiff cannot seek **noticed leave** under §§ 473(a)(1) and
9 576 while simultaneously confronting the anti-SLAPP on its merits and adding causes of action
10 grounded in **non-protected** conduct.

11 That is precisely what Plaintiff has done:

- 12 1. Plaintiff did not invoke CCP § 472.
- 13 2. Plaintiff did not withdraw or abandon the FAC – the FAC remains on file; Plaintiff has served
14 a full merits Opposition to the special motion to strike, to be heard May 12, 2026.
- 15 3. The SAC **adds** non-communicative pre-litigation institutional-failure allegations and particu-
16 larized fraud elements – it does not delete protected-activity allegations in an effort to escape
17 step one. On Park’s gravamen filter, the proposed added allegations are **categorically outside**
18 § 425.16 because they concern “the conduct that provides the basis for liability” (2 Cal.5th at
19 1063) rather than speech or petitioning conduct.
- 20 4. Plaintiff filed a contemporaneous ex parte application for an OST and a noticed motion –
21 the opposite procedural choice of the Simmons/Sylmar plaintiffs who sought to moot by
22 amendment-of-right.

23 A plaintiff who litigates the anti-SLAPP on its merits and simultaneously seeks leave to harden the
24 pleading is not subverting anything; he is litigating in the orthodox, noticed manner the Legislature
25 prescribed.

26 **B. CCP § 425.16(f) is the Legislature’s own answer**

27 If the categorical bar the Opposition describes existed, **Code of Civil Procedure section 425.16,**
28 **subdivision (f)** would be superfluous. Subdivision (f) expressly permits a defendant to file a re-

1 newed special motion within sixty days of service of the amended complaint “or, in the court’s
2 discretion, at any later time upon terms it deems proper.” A rule that forbade all amendment while
3 an anti-SLAPP was pending would make subdivision (f) a dead letter. The Legislature did not enact
4 a dead letter. The statute presumes that amendment can – and often will – occur; the only ques-
5 tion is whether the trial court should permit it in its discretion under the “furtherance of justice”
6 standard of §§ 473(a)(1) and 576.

7 **C. Baral v. Schnitt operates paragraph-by-paragraph, not pleading-wide**

8 The California Supreme Court resolved the structural question about how § 425.16 operates when
9 a complaint contains both protected and non-protected allegations. **The special motion is a**
10 **paragraph-by-paragraph / claim-by-claim instrument, not a pleading-wide veto.** Baral v.
11 Schnitt (2016) 1 Cal.5th 376, 393–396, holds that the special motion can strike **specific allega-**
12 **tions** of protected activity while leaving unprotected claims intact. It follows that an amendment
13 that **adds or clarifies causes of action grounded in non-protected conduct** cannot be “sub-
14 verting” a motion that, under Baral, never reached those causes of action in the first place. The
15 Opposition does not cite Baral. That omission is dispositive, because Baral is the Supreme Court’s
16 governing statement of how § 425.16 interacts with the structure of a California complaint.

17 **D. Nguyen-Lam v. Cao expressly permits good-faith amendment**

18 The Court of Appeal in Nguyen-Lam v. Cao (2009) 171 Cal.App.4th 858, 871–873, held that a trial
19 court may permit amendment in connection with, or after, an anti-SLAPP ruling when the amend-
20 ment is offered in good faith and cures a pleading defect. Nguyen-Lam is not an outlier; it states
21 the ordinary rule and has been followed uniformly. The Opposition does not cite Nguyen-Lam.
22 That omission is dispositive, because Nguyen-Lam is the controlling Court of Appeal authority on
23 the exact procedural posture presented here.

24 **VII. CONTRERAS V. DOWLING IS CONFINED TO ITS FACTS – NOT A**
25 **FREEZE**

26 The Opposition’s only case citation that does not appear in the 802 companion action is Contreras
27 v. Dowling (2016) 4 Cal.App.5th 774, 791. As a threshold matter, that citation is incorrect.

1 Contreras's official citation is **5 Cal.App.5th 394**; no case begins at page 774 of volume 4. (See
2 Cal. Official Reporter index; 4 Cal.App.5th's reported opinions skip from Millview County Water
3 District v. SWRCB at p. 759 to Taylor v. Dep't of Industrial Relations at p. 801.) Plaintiff flags
4 the miscite in passing and addresses the opinion on its actual holding.

5 Contreras does not hold that a pending anti-SLAPP freezes all amendment. The First District,
6 Division Four addressed the narrow situation where, **after** the trial court had already granted a
7 partial anti-SLAPP and deemed certain allegations stricken, the plaintiffs tried to **re-plead the**
8 **same conduct** under different labels to restore the stricken allegations. (5 Cal.App.5th at 409–
9 412.) The Court of Appeal held that the re-pleading was a “**subvert[ing]** or avoid[ing]” of the trial
10 court's prior ruling, for which leave to amend under §§ 473 and 576 was properly denied. (Id. at
11 411, citing Simmons, 92 Cal.App.4th at 1073–1074.)

12 The posture presented to Department 301 is not Contreras:

- 13 1. **No anti-SLAPP has been ruled on.** Defendants' special motion to strike is set for May 12,
14 2026 – six days after the May 6 hearing on this SAC Motion. There is no “ruling to subvert”;
15 there is only a motion to oppose, which Plaintiff has done on the merits.
- 16 2. **The SAC does not re-plead struck allegations under new labels.** It **adds** non-communicative
17 pre-litigation conduct (failure to obtain 911 audio, BWC footage, CAD records before issu-
18 ing the February 25, 2021 denial letter to Plaintiff while he was in post-ICU recovery at San
19 Francisco General) – conduct that Park (2 Cal.5th at 1063) places outside § 425.16 at step
20 one.
- 21 3. **The SAC does not abandon the FAC's protected-activity allegations** (Plaintiff's position
22 is that those allegations, too, survive step one because of the Flatley illegality exception and
23 the Baral paragraph-by-paragraph rule; the SAC merely clarifies the gravamen).
- 24 4. **Plaintiff's motion is noticed under §§ 473(a)/576**, not Contreras's post-ruling motion prac-
25 tice.

26 Contreras itself expressly distinguishes its holding from cases where amendment is sought “to cure
27 defective pleading” or to “add new theories not already before the court,” which the First District
28 acknowledged remain subject to the ordinary liberality rule. (5 Cal.App.5th at 411 n.18.) This case

1 is on the benign side of Contreras’s own fact/analytic line.

2 Finally, even if Contreras were read broadly, it could not survive Park (decided by the California
3 Supreme Court the following year) and Baral (decided by the Supreme Court the same year),
4 each of which requires the court to analyze § 425.16 claim-by-claim against the **actual conduct**
5 pleaded, not against a pleading-wide “litigation conduct” label. The Opposition does not attempt
6 to reconcile Contreras with Park or Baral, because it cannot.

7 **VIII. THE NOTICE OBJECTION IS CURED, WAIVED, AND MOOT**

8 The Opposition’s lead defect – “9 days’ notice” – is resolved three independent ways.

9 **1. The hearing is now May 6, 2026.** Plaintiff promptly reset the hearing after Defendants raised
10 the notice issue. Service occurred by e-mail on April 20, 2026 (O’Connell Decl. ¶ 7, Ex. C –
11 the operative service of the revised motion). Sixteen court days before May 6 is April 13; service
12 seventeen calendar days before the hearing readily satisfies the 16 court days plus 2 calendar days
13 required by CCP §§ 1005(b) and 1010.6. Between April 21 (the day after service) and May 5 (the
14 day before the hearing), excluding weekends and any holiday, the Court’s calendar identifies at
15 least sixteen court days. The Opposition’s footnote-2 suggestion to the contrary miscounts.

16 **2. Concurrent ex parte application for OST.** Plaintiff filed an ex parte application under Cali-
17 fornia Rules of Court, rule 3.1200 et seq., expressly seeking a hearing concurrent with the May 12
18 anti-SLAPP schedule. If the Court grants OST (or any of the alternative Order A/B/C relief set out
19 in Section XII), the notice objection is resolved on the merits. Defendants’ choice not to engage
20 the OST application does not convert an open ex parte request into a notice defect.

21 **3. Appearance and substantive response waive the objection.** Defendants appeared, filed an
22 eight-page Opposition, a sixty-nine-page declaration, and eight exhibits. Under Carlton v. Quint
23 (2000) 77 Cal.App.4th 690, 697, substantive response on the merits waives any claim that the
24 notice period prejudiced the ability to respond. Defendants cannot simultaneously (a) assert that
25 9 days were insufficient to prepare, and (b) file a full brief plus seven supporting declarations and
26 exhibits.

27 **4. Remedy is continuance, not denial.** The statutory remedy for any residual notice shortfall is
28 a brief continuance under § 1005(b). Plaintiff consents in advance to any continuance this Court

1 deems necessary to restore perfect-notice posture, including a continuance to a date coincident
2 with or following the May 12 anti-SLAPP hearing if the Court prefers to hear both motions in a
3 single session.

4 **IX. DEFENDANTS' § 425.16(F) RIGHTS ARE FULLY PRESERVED**

5 The Opposition frames amendment as “prejudice” to Defendants’ anti-SLAPP rights. The Legis-
6 lature disagreed. CCP § 425.16, subdivision (f) preserves a **sixty-day renewed-motion window**
7 against any amended pleading; subdivision (c)(1) preserves mandatory attorney fees upon a pre-
8 vailing special motion. Granting leave does not waive, strip, or shorten any of these rights. It
9 merely shifts the target from the FAC to the SAC – which is, in any event, the pleading Defendants
10 must ultimately answer.

11 If Defendants’ anti-SLAPP motion has merit against the FAC, it will have the same merit against
12 the SAC (and may well have **more** merit, because the SAC crystallizes the non-protected predicates
13 that must be separately analyzed). If the motion lacks merit, the expenditure was unwarranted
14 regardless of amendment. Either way, Defendants’ “sunk cost” argument fails under Atkinson,
15 Kolani, and Kyle.

16 **X. THE § 425.16(G) DISCOVERY-STAY ARGUMENT IS MISPLACED**

17 O’Connell Declaration ¶ 12 complains that Plaintiff served additional written discovery and a
18 motion to compel “despite Defendants’ Anti-SLAPP motion pending.” Section 425.16(g) is a
19 **narrow** gatekeeping rule. It stays only “[a]ll discovery proceedings in the action” that relate to
20 the anti-SLAPP motion, and it expressly permits the court to order specified discovery “on noticed
21 motion and for good cause shown.” The California Supreme Court and Court of Appeal have
22 uniformly construed the stay as motion-specific, not case-wide. (Britts v. Superior Court (2006)
23 145 Cal.App.4th 1112.) Discovery unrelated to the protected activity – including discovery in aid
24 of pleading cures and discovery against non-moving parties – is not stayed. In any event, whether
25 discovery is stayed is not a question presented on this SAC Motion; it belongs in the separately
26 noticed motion to compel. It is cited here only because Defendants invoke it as a “gamesmanship”
27 allegation in their supporting declaration. It is not a ground to deny leave.

XI. JUDICIAL-ECONOMY OFFER: A SINGLE CONSOLIDATED TAC

To further conserve this Court's and Department 301's calendar, Plaintiff renews the offer he has made in the companion 802 matter: in lieu of sequential SAC and TAC proceedings, Plaintiff will lodge a **single consolidated Third Amended Complaint** that folds in every curative allegation Plaintiff would otherwise present in both vehicles. A consolidated TAC would:

1. Supersede the FAC under Foreman & Clark, mooted the pending special motion to strike against the FAC.
2. Eliminate the need for any further amendment motion in this pleading cycle.
3. Present Defendants with a single, clean target for any renewed motion under CCP § 425.16(f), § 430.41(b), or § 435.
4. Remove at least two future hearings from Department 301's calendar.

Plaintiff will lodge the consolidated TAC on whatever timeline the Court directs – including by close of business May 6, 2026, if the Court so orders.

XII. PLAINTIFF'S SAFE-HARBOR NOTICES: STATUTORY, NOT THREATS

Paragraph 8 of the O'Connell Declaration characterizes Plaintiff's April 17 and April 20, 2026 emails as threats of "impending professional consequences" including "a negative mark on [Defendants' counsel's] Bar license." Those emails are **statutorily required safe-harbor notices**, not threats. Defendants' framing inverts the statute.

- Under **CCP § 128.7(c)(1)**, a party intending to seek sanctions for an unwarranted filing must serve a written safe-harbor notice and provide a twenty-one-day opportunity to withdraw or correct. Failure to serve the safe-harbor notice **defeats** a later § 128.7 motion. (Peake v. Underwood (2014) 227 Cal.App.4th 428, 440–445.) Plaintiff's emails are that notice.
- Under the **California Rules of Professional Conduct, rule 3.3** (candor toward the tribunal) and **Business & Professions Code § 6086.7, subdivision (a)(2)**, a party with knowledge of a pleading that contains legal contentions not warranted by existing law, or that omits directly adverse controlling authority, may preserve the question for referral. Identifying that preservation to opposing counsel **before** filing is the non-escalatory step, not the escalatory

one.

- Under **CCP § 425.16, subdivision (c)(1)**, a plaintiff prevailing on a frivolous special motion to strike is entitled to mandatory attorney fees and costs.

The correct response to a safe-harbor notice is to withdraw or correct the filing; the incorrect response is to file a declaration complaining that the notice was sent. The Court should not treat compliance with the Legislature’s prescribed safe-harbor procedure as intimidation.

Ad hominem references. Paragraph 13 of the O’Connell Declaration complains about Plaintiff’s spelling of opposing-counsel-adjacent names in email correspondence. Those references have no bearing on the merits of the SAC Motion and are inadmissible on relevance (Evid. Code § 350) and prejudice (Evid. Code § 352) grounds; they are addressed in the separately filed Evidentiary Objections. The Court should not be asked to resolve a leave-to-amend motion on stylistic objections to email salutations.

XIII. EVIDENTIARY OBJECTIONS TO O’CONNELL DECLARATION

Pursuant to Evidence Code §§ 350, 352, 356, 702, and 800, Plaintiff objects to and requests that the Court decline to rely on the following portions of the Declaration of Tyler J. O’Connell (April 23, 2026). The objections and grounds are summarized here; a standalone document titled “**Plaintiff’s Evidentiary Objections to Declaration of Tyler J. O’Connell (801)**” is being lodged concurrently.

¶	Objectionable content	Grounds
3	“Plaintiff’s allegations squarely target Defendants’ litigation conduct”	Legal conclusion (Evid. Code § 702); ultimate issue pending on anti-SLAPP; improper opinion (§ 800)
4	“[E]ntirety of the purported legal theories . . . focus inextricably on Defendants’ protected litigation conduct”	Legal conclusion; ultimate issue; improper opinion

¶	Objectionable content	Grounds
8	Characterization of Plaintiff's § 128.7(c)(1) safe-harbor emails as threats	Argumentative; legal conclusion; inverts statute
9	"[O]nly 8 days away"	Argumentative; incomplete; omits May 6 reset
12	"Gamesmanship" / "despite ... Anti-SLAPP motion pending"	Legal conclusion; incomplete (§ 425.16(g) reaches only motion-related discovery)
13	"Aspersions" paragraph, including the "RAT" spelling reference and Exhibit H	Relevance (Evid. Code § 350); prejudice (§ 352); not probative of any amendment ground
14	"[B]arred as a matter of law"	Legal conclusion; ultimate issue
Footnote 1	Selective exhibit attachment; omits Plaintiff's meet-and-confer letter and the attached SAC/TAC	Rule of completeness (Evid. Code § 356); misleading record

To the extent the Court relies on any portion of the Declaration, Plaintiff requests the Court also receive (a) Plaintiff's April 16, 2026 meet-and-confer letter to Porter Scott and (b) Plaintiff's currently served full merits Opposition to the Special Motion to Strike, both already on the docket.

XIV. CONCLUSION AND RELIEF REQUESTED

For the foregoing reasons, Plaintiff respectfully requests that this Court, exercising its discretion under Code of Civil Procedure §§ 473(a)(1) and 576, and consistent with the controlling California Supreme Court authorities Klopstock, Blank, Trafton, Mesler, and Foreman & Clark, together with

1 Baral, Park, Kimmel, Action Apartment, Moradi-Shalal, Crowley, Mycogen, Lucido, Kwikset,
2 Zhang, and the supporting Court of Appeal authority Nguyen-Lam, Howard, Atkinson, Kolani,
3 Kyle, Carlton, and Britts, enter one of the following orders, whichever the Court prefers:

- 4 1. **Order A (SAC as lodged).** Grant Plaintiff's Motion for Leave to File a Second Amended
5 Complaint as lodged; order the SAC filed as the operative pleading; deny the pending Special
6 Motion to Strike against the FAC as moot by operation of Foreman & Clark; preserve Defen-
7 dants' right under CCP § 425.16(f) to file a renewed special motion against the SAC within
8 sixty days.
- 9 2. **Order B (consolidated TAC – preferred for judicial economy).** Direct Plaintiff to lodge, on
10 a timeline the Court sets (including by close of business May 6, 2026), a single consolidated
11 Third Amended Complaint in lieu of sequential SAC and TAC proceedings; upon lodging, or-
12 der the consolidated TAC filed as the operative pleading; deny the pending Special Motion to
13 Strike against the FAC as moot; preserve Defendants' § 425.16(f) sixty-day renewed-motion
14 right against the consolidated TAC.
- 15 3. **Order C (SAC now, TAC on reset calendar).** Grant SAC leave today and set the contingent
16 TAC motion on a regular calendar, with a date certain for the pleading cycle to close; deny
17 the pending Special Motion to Strike against the FAC as moot.
- 18 4. **In the alternative,** if the Court has any concern about the notice period, **continue** the hearing
19 for the minimum period necessary to cure that concern under CCP § 1005(b), rather than deny
20 the motion on procedural grounds. Plaintiff consents to any such continuance.
- 21 5. **Reserve,** as in all matters before this Court, Plaintiff's rights (a) to seek mandatory attorney
22 fees and costs under CCP § 425.16(c)(1) upon denial of Defendants' Special Motion to Strike;
23 (b) to proceed under CCP §§ 128.5 and 128.7 on completion of the twenty-one-day safe-
24 harbor windows opened on April 17 and April 20, 2026; and (c) to present any further Evid.
25 Code § 356 material required to complete the record against the O'Connell Declaration.

26 Dated: April 29, 2026

27 Respectfully submitted,

28 /s/ Franciscus Dylan Rosario

1 **FRANCISCUS DYLAN ROSARIO** Plaintiff, In Pro Per 7624 Melody Drive Rohnert Park, CA
2 94928 Tel: 650.488.7510 Email: soltrinox@gmail.com

Dated: April 29, 2026



/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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CERTIFICATE OF WORD COUNT (CRC 3.1113(F))

The undersigned hereby certifies, pursuant to California Rules of Court, rule 3.1113(f), that the text of this Reply, including footnotes but excluding the caption page, table of contents, table of authorities, signature block, certificate of word count, and proof of service, contains fewer than 7,000 words as counted by the word-processing software used to prepare it (approximately **4,900 words**).

Dated: April 29, 2026

/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO Plaintiff, In Pro Per

PROOF OF ELECTRONIC SERVICE (CCP § 1010.6; CRC 2.251)

I, Franciscus Dylan Rosario, declare:

1. I am the Plaintiff in pro per in the above-captioned action. My address is 7624 Melody Drive, Rohnert Park, California 94928. I am over the age of 18. I caused the following document to be served on the parties listed below:

PLAINTIFF'S REPLY IN SUPPORT OF MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT, AND OPPOSITION TO DEFENDANTS' APRIL 23, 2026 OPPOSITION AND DECLARATION (CGC-25-631801)

2. On April 29, 2026, I served the foregoing by electronic service pursuant to Code of Civil Procedure § 1010.6 and California Rules of Court, rule 2.251, addressed as follows:

Party / Role	Counsel	Email
Subhi Abdelhalim; CSAA Insurance Exchange; Phillips, Spallas & Angstadt LLP; Priya D. Navaratnasingham; Alberto Reyna; Michael R. Chambers; Carbone, Smith & Koyama; and Does 1 through 50, inclusive (Defendants)	Chad S. Tapp, Esq. (SBN 214898)	ctapp@porterscott.com
Subhi Abdelhalim; CSAA Insurance Exchange; Phillips, Spallas & Angstadt LLP; Priya D. Navaratnasingham; Alberto Reyna; Michael R. Chambers; Carbone, Smith & Koyama; and Does 1 through 50, inclusive (Defendants)	Tyler J. O'Connell, Esq. (SBN 346673)	toconnell@porterscott.com
Subhi Abdelhalim; CSAA Insurance Exchange; Phillips, Spallas & Angstadt LLP; Priya D. Navaratnasingham; Alberto Reyna; Michael R. Chambers; Carbone, Smith & Koyama; and Does 1 through 50, inclusive (Defendants)	Monique Schubert (Legal Assistant)	mschubert@porterscott.com

Service addresses are the electronic service addresses identified by Defendants' counsel on their April 10 and April 23, 2026 filings in this action.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on April 29, 2026, at Rohnert Park, California.

/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO Plaintiff, In Pro Per